



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

SB 1540: motor fuel theft; classifications

BIASIUCCI FLOOR AMENDMENT

1. Amends the offense, *theft of motor fuel*, to require that the person breaching the retail fuel dispenser must have used a device constructed for the purpose of fraudulently altering or interrupting the normal operation of the dispenser.
2. Amends the classification for committing *theft of motor fuel* to be a class 5 felony only if more than 50 gallons of motor fuel is taken.

ADDITIONAL COW
BIASIUCCI FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1540
(Reference to House engrossed Senate bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 18, Arizona Revised Statutes, is
3 amended by adding section 13-1821, to read:

4 13-1821. Theft of motor fuel; classification; definition

5 A. A PERSON COMMITS THEFT OF MOTOR FUEL IF THE PERSON WILFULLY,
6 KNOWINGLY AND WITHOUT AUTHORIZATION:

7 1. BREACHES A RETAIL FUEL DISPENSER OR ACCESSES ANY INTERNAL
8 PORTION OF A RETAIL FUEL DISPENSER [WITH ANY DEVICE THAT IS CONSTRUCTED
9 FOR THE PURPOSE OF FRAUDULENTLY ALTERING, MANIPULATING OR INTERRUPTING THE
10 NORMAL OPERATION OF A RETAIL FUEL DISPENSER].

11 2. PHYSICALLY TAMPERS WITH, MANIPULATES, REMOVES, REPLACES OR
12 INTERRUPTS ANY MECHANICAL OR ELECTRONIC COMPONENT THAT IS LOCATED ON THE
13 INTERNAL OR EXTERNAL PORTION OF A RETAIL FUEL DISPENSER.

14 3. USES ANY FORM OF ELECTRONIC COMMUNICATION TO FRAUDULENTLY ALTER,
15 MANIPULATE OR INTERRUPT THE NORMAL OPERATION OF A RETAIL FUEL DISPENSER.

16 B. A VIOLATION OF SUBSECTION A, PARAGRAPH 1 OF THIS SECTION IS A
17 CLASS 6 FELONY, EXCEPT THAT IF THE VIOLATION RESULTS IN A PERSON OBTAINING
18 [MORE THAN FIFTY GALLONS OF] MOTOR FUEL IT IS A CLASS 5 FELONY.

19 C. A VIOLATION OF SUBSECTION A, PARAGRAPH 2 OR 3 OF THIS SECTION IS
20 A CLASS 5 FELONY.

21 D. FOR THE PURPOSES OF THIS SECTION, "MOTOR FUEL" HAS THE SAME
22 MEANING PRESCRIBED IN SECTION 28-5601.

House Amendments to S.B. 1540

- 1 Enroll and engross to conform
- 2 Amend title to conform

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